

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

AARON MOULTRIE v. UNKNOWN ENTITY
Case No. CU24-04235

SOLANO's Demurrer

TENTATIVE RULING

Defendant SOLANO COUNTY ("SOLANO") demurs to Plaintiff AARON MOULTRIE's complaint alleging violation of Civil Code section 52.7 and intentional infliction of emotional distress. Plaintiff alleges that while he was in SOLANO's custody in 2006 SOLANO agents implanted a radio chip in his right knee without his consent. Plaintiff alleges discovery of the radio chip in approximately May 2023. Plaintiff alleges that the presence of the chip causes him pain, discomfort, and inability to utilize cell phones or the internet.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. Matters subject to judicial notice may support a demurrer. (Code Civ. Proc., § 430.30, subd. (a).) The court takes judicial notice of Plaintiff's government claim submitted February 10, 2025 and rejected February 20, 2025 under Evidence Code section 452, subdivision (c). (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.)

Government Tort Claims Act. Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages against public entities generally must be presented to the entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) A written administrative claim for injury to the

person, personal property, or crops must be presented within six months of the accrual of the cause of action. (Gov. Code § 911.2.) All other claims must be presented within one year. (*Ibid.*) Failure to timely file a claim that must be filed within six months can be excused with a written application to the public entity for leave to file late. (Gov. Code § 911.4.) However, a late claim application must be filed within one year of accrual of the underlying cause of action, or the court will lack jurisdiction to grant relief. (*J.J. v. County of San Diego* (2014) 223 Cal.App.4th 1214, 1221.) Similarly, there is no provision for relief from failure to timely file claims that had a one-year time limit for presentation to begin with. Failure to comply with claim presentation requirements is a bar to any civil action against the public entity and may be addressed by demurrer. (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 207; *Fall River Joint Unified School District v. Superior Court* (1998) 206 Cal.App.3d 431, 434.)

Plaintiff did not timely file a government claim before bringing this action against SOLANO. Plaintiff alleges that the chip was implanted while he was in SOLANO's custody in 2006 but his government claim was presented in February 2025.

The delayed discovery doctrine does not assist Plaintiff. Though Plaintiff states that he detected the chip in May 2023, he also states his realization that the chip must have been implanted during a 2006 procedure in SOLANO's custody because that is the only time Plaintiff ever underwent a medical procedure relating to his right knee. (Complaint at p. 4, ¶ IT-1; Declaration of Aaron Moultrie in Support of Opposition at ¶¶ 5-6.) Therefore Plaintiff admits he understood in 2023 that SOLANO was involved in his alleged harm. His February 2025 claim was untimely even allowing for delayed discovery of harm.

The continuing violation doctrine also does not assist Plaintiff. The continuing violation doctrine affects the time of accrual of a cause of action and therefore can apply to delay the start of the six-month period for presentation of a government claim. (*Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1124.) The continuing violation doctrine aggregates a series of wrongs or injuries for purposes of the time of claim accrual, treating the period as commencing for all injuries in the series upon commission of the last of them. (*Ibid.*) For the doctrine to apply the plaintiff must show that the defendant engaged in a pattern of reasonably frequent and similar acts that may justify treating the acts as an indivisible course of conduct actionable in its entirety. (*Ibid.*) Plaintiff does not show this. He states that SOLANO implanted a chip in him in 2006, a single distinct act not followed by related acts. That Plaintiff complains that he suffers harm from that one wrong to this day does not change the fact that it is one wrong. The continuing violation doctrine does not spare him from claims presentation requirements.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Failure to timely present a tort claim is not amenable to cure by amendment.

Conclusion. SOLANO's demurrer is sustained without leave to amend.

QUINT v. BAYON, ET AL.
Case No. CU24-08326

Demurrer

TENTATIVE RULING:

Defendant's demurrer and motion to strike are vacated. The motions, directed against the original complaint, have been rendered moot by the filing of Plaintiff's first amended complaint. (*JK3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.)

It appears that Plaintiff failed to effectively serve the First Amended Complaint ("FAC"), instead mailing the FAC to the City's offices prior to CITY's first appearance. Plaintiff had the duty to ensure the operative pleadings were filed and personally served. Only after Defendant's appearance could Plaintiff serve by mail.

Plaintiff shall serve the FAC within 10 days. Defendants shall file a responsive pleading pursuant to the Code of Civil Procedure.

Bank of America N.A. v. Tanuja Peiris
Case No. FCM176308

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant TANUJA PEIRIS has never appeared in this action. Plaintiff submitted a request for dismissal pursuant to Code of Civil Procedure section 664.6. The request for dismissal referenced a stipulation, but no stipulation was ever filed. It appeared that a stipulation was rejected when Plaintiff attempted to file the stipulation, paying only \$20 instead of including a first appearance fee.

Further, even had the stipulation been filed, a confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of